

LEGISLATURE OF THE STATE OF IDAHO
Sixty-eighth Legislature Second Regular Session - 2026

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 850

BY HEALTH AND WELFARE COMMITTEE

AN ACT

RELATING TO MEDICAID; AMENDING SECTION 31-3502, IDAHO CODE, TO REMOVE A CODE REFERENCE; REPEALING SECTION 56-267, IDAHO CODE, RELATING TO MEDICAID ELIGIBILITY EXPANSION; REPEALING SECTION 56-2205, IDAHO CODE, RELATING TO LEGISLATIVE APPROVAL AND MEDICAID EXPANSION LIMITS; AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 31-3502, Idaho Code, be, and the same is hereby amended to read as follows:

31-3502. ELIGIBILITY FOR FINANCIAL ASSISTANCE. (1) Notwithstanding any provision of law or rule to the contrary, no person eligible for medic-aid pursuant to section 56-254 ~~or 56-267~~, Idaho Code, shall be eligible for financial assistance pursuant to this chapter as it existed on March 1, 2022.

(2) Notwithstanding any provision of law or rule to the contrary, no person eligible for health insurance shall be eligible for financial assis-tance pursuant to this chapter as it existed on March 1, 2022.

(3) Notwithstanding any provision of law or rule to the contrary, no person in a commitment proceeding pursuant to chapter 3, title 66, Idaho Code, who is eligible for medicaid or eligible for health insurance shall be eligible for financial assistance pursuant to this chapter as it existed on March 1, 2022.

(4) A board of county commissioners, the board of the catastrophic health care cost program, or the department of health and welfare receiving an application for assistance for services received through March 31, 2022, shall process such application pursuant to this chapter as it existed on March 1, 2022.

(5) It is the intent of the legislature that moneys saved by counties pursuant to this section may be used for additional county aid to public health districts as required by section 39-424A, Idaho Code.

SECTION 2. That Section [56-267](#), Idaho Code, be, and the same is hereby repealed.

SECTION 3. That Section [56-2205](#), Idaho Code, be, and the same is hereby repealed.

SECTION 4. This act shall be in full force and effect on and after Jan-uary 1, 2028.